



U.S. Department
of Transportation

Research and
Special Programs
Administration

DOT-E 11280

JUL 8 1994

4th Seventh Street, S.W.
Washington, D.C. 20583

EXPIRATION DATE: March 5, 1995

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Amoco Oil Company, Chicago, Illinois.
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the transportation of class DOT 111A tank cars with a shell thickness below the regulatory minimum. This exemption provides no relief from any regulations other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.29(a); 173.31(a) and (b)(3); and 179.200-6.
5. BASIS. This emergency exemption is based on Amoco Oil Company's application of December 15, 1993, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary to prevent serious economic loss.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/ Division	Identification number	Packing Group
Sulfur, molten	9	UN 2448	III

7. PACKAGING(S) and SAFETY CONTROL MEASURES:

a. PACKAGING - Tank cars must conform to the requirements of class DOT 111A registered series AMOX-13,000 through 13,374, except each tank car found with a shell thickness below the regulatory minimum, as stated in 49 CFR Part 179, may continue in service if the reduction in the shell thickness is no more than that provided for in the following table:

Damage type	Class DOT 111 tank cars	
	Top shell	Bottom shell
Corrosion, general	3.17 mm (1/8 inch)	1.58 mm (1/16 inch)
Corrosion, local	4.76 mm (3/16 inch)	3.17 mm (1/8 inch)

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b. The perimeter for local reductions in the top shell may not exceed a 60.96 cm (24 inches). Local reductions in the top shell must be separated from other reductions in the top shell by at least 40.64 cm (16 inches). The total cumulative perimeter for local reductions in the bottom shell may not exceed 182.88 cm (72 inches).

c. Any reduction in the tank car shell may not effect the structural strength of the tank car so that the tank car shell no longer conforms to Section 6.2 of the Association of American Railroads Specification for Tank Cars.

d. INSPECTION - Each tank car operating under the terms of this exemption must have a stub sill inspection, according to the Federal Railroad Administration's Emergency Order Number 17, prior to use.

e. MARKING - Tank cars must be marked "DOT-E 11280" in four inch letters and numbers on a contrasting background above the DOT specification number.

8. SPECIAL PROVISIONS.

Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

9. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

10. MODAL REQUIREMENTS:

a. The rail carrier must inform the Federal Railroad Administration of any unusual incident, such as a derailment or tank car damage, that occurs during the transportation of any tank car operating under the terms of this exemption by contacting the:

Federal Railroad Administration
Office of Safety Enforcement, RRS-12
Hazardous Materials Division
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

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11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Hazardous Materials Transportation Act:

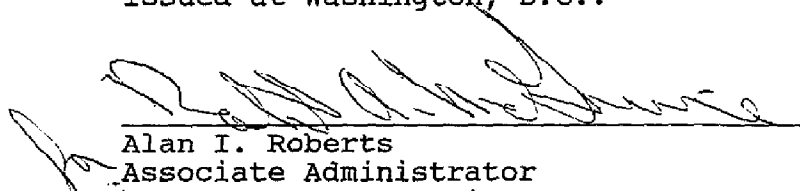
- All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.
- Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS.

The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FRA